# COMMERCIAL LEASE AGREEMENT

Cypress Technology Campus | Kansas City, MO

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|---|---|
| **Landlord** | Cypress Technology Campus Owner LLC |
| **Tenant** | Bluebird Hosting |
| **Premises** | Suite 37370, Cypress Technology Campus |
| **Lease Date** | August 5, 2024 |
| **Term** | 3 years |

**1. Premises.** Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Cypress Technology Campus, 3953 Maple Court, Kansas City, MO 95850. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**2. Term.** The term of this Lease shall be 3 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. Time is of the essence with respect to each and every provision of this instrument.

**3. Base Rent.** Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO.

**4. Additional Rent and Operating Expenses.** Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**5. Security Deposit.** Upon execution, Tenant shall deposit with Landlord a security deposit equal to 11 months of Base Rent, to be held without interest. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**6. Use.** The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**7. Maintenance and Repairs.** Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Time is of the essence with respect to each and every provision of this instrument. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

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**8. Alterations.** Tenant shall not make any alterations costing more than $356,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**9. Insurance and Indemnity.** Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

**10. Assignment and Subletting.** Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**11. Default and Remedies.** If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**12. Renewal Option.** Tenant shall have 6 option(s) to renew for 8 years each at the then-prevailing market rent upon at least nine months' notice. Time is of the essence with respect to each and every provision of this instrument. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**13. Subordination and Estoppel.** This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

**14. Premises.** Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Cypress Technology Campus, 3953 Maple Court, Kansas City, MO 95850. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

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## Capital Project Schedule

| Project | Category | Start | Completion | Budget | Spent to Date | Status |
|---|---|---|---|---|---|---|
| Sewer line repair | Building | 03/02/26 | Q2 2027 | $132,000 | $111,893 | In progress |
| Water heater replacement | Site | 09/30/26 | Q1 2027 | $599,000 | $369,632 | In progress |
| ADA compliance | Life Safety | 06/16/25 | Q3 2027 | $374,000 | $380,401 | Approved |
| ADA compliance | Energy | 06/23/26 | Q3 2027 | $125,000 | $63,386 | Bidding |
| Unit interior upgrades | Site | 05/06/24 | Q3 2026 | $511,000 | $405,672 | In progress |
| LED lighting retrofit | Energy | 12/29/26 | Q2 2025 | $560,000 | $526,917 | In progress |
| Storefront glazing | Life Safety | 01/06/24 | Q4 2026 | $41,000 | $3,299 | Complete |
| LED lighting retrofit | Building | 01/28/26 | Q1 2027 | $157,000 | $77,006 | Complete |
| ADA compliance | Building | 04/16/26 | Q3 2027 | $319,000 | $132,078 | Deferred |
| Sewer line repair | Interior | 04/17/23 | Q2 2025 | $491,000 | $406,207 | In progress |
| Elevator modernization | Energy | 04/03/26 | Q3 2027 | $153,000 | $41,552 | Bidding |
| Amenity renovation | Energy | 07/18/26 | Q4 2027 | $100,000 | $75,402 | Bidding |
| Sewer line repair | Energy | 02/14/26 | Q1 2027 | $423,000 | $380,138 | Bidding |
| Fence replacement | Building | 01/11/24 | Q4 2027 | $870,000 | $517,581 | In progress |
| Fire alarm panel upgrade | Site | 10/11/24 | Q2 2027 | $98,000 | $41,261 | In progress |
| HVAC replacement | Life Safety | 07/30/25 | Q4 2025 | $25,000 | $2,467 | Complete |
| Exterior paint | Energy | 01/17/26 | Q2 2025 | $326,000 | $44,176 | Approved |
| Lobby renovation | Energy | 02/08/25 | Q1 2025 | $252,000 | $82,833 | In progress |
| Unit interior upgrades | Building | 03/24/25 | Q1 2025 | $723,000 | $253,378 | Complete |
| Door hardware | Energy | 10/15/25 | Q4 2025 | $433,000 | $20,297 | Deferred |
| Fence replacement | Site | 02/01/25 | Q2 2026 | $821,000 | $517,800 | Bidding |
| Storefront glazing | Site | 03/18/25 | Q2 2025 | $796,000 | $521,855 | Bidding |
| Signage / monument | Energy | 03/04/25 | Q4 2025 | $701,000 | $580,343 | Bidding |
| Signage / monument | Life Safety | 11/14/25 | Q2 2026 | $870,000 | $42,444 | Complete |
| Roof replacement - Bldg D | Site | 10/30/23 | Q2 2027 | $489,000 | $328,851 | Complete |
| Amenity renovation | Life Safety | 04/06/25 | Q2 2026 | $768,000 | $598,377 | Deferred |
| Elevator modernization | Interior | 01/01/25 | Q4 2026 | $551,000 | $344,984 | Deferred |
| Parking lot resurfacing | Life Safety | 07/27/23 | Q2 2027 | $759,000 | $250,729 | In progress |
| Water heater replacement | Site | 03/09/26 | Q1 2026 | $251,000 | $63,250 | Deferred |
| Sewer line repair | Site | 10/23/26 | Q1 2026 | $380,000 | $309,725 | Complete |
| Parking lot resurfacing | Energy | 07/01/23 | Q2 2025 | $108,000 | $24,074 | Approved |
| Parking lot resurfacing | Energy | 04/06/26 | Q1 2026 | $852,000 | $108,427 | Deferred |
| Storefront glazing | Interior | 07/25/24 | Q2 2026 | $487,000 | $171,499 | Bidding |
| Signage / monument | Interior | 12/17/24 | Q4 2027 | $21,000 | $1,112 | Complete |
| Pool resurfacing | Life Safety | 01/14/25 | Q2 2025 | $440,000 | $71,300 | Bidding |
| Lobby renovation | Building | 01/20/24 | Q1 2027 | $890,000 | $134,081 | Bidding |
| Pool resurfacing | Life Safety | 08/29/24 | Q4 2026 | $745,000 | $278,252 | In progress |
| Security camera upgrade | Building | 09/17/25 | Q3 2025 | $217,000 | $200,054 | Complete |
| Fence replacement | Site | 07/29/23 | Q4 2026 | $99,000 | $21,865 | In progress |
| Fire alarm panel upgrade | Site | 07/04/25 | Q1 2027 | $857,000 | $284,485 | Complete |
| LED lighting retrofit | Life Safety | 08/11/23 | Q1 2026 | $380,000 | $161,316 | In progress |
| ADA compliance | Building | 12/15/26 | Q4 2025 | $371,000 | $245,746 | Approved |

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**15. Term.** The term of this Lease shall be 12 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**16. Base Rent.** Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO.

**17. Additional Rent and Operating Expenses.** Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**18. Security Deposit.** Upon execution, Tenant shall deposit with Landlord a security deposit equal to 36 months of Base Rent, to be held without interest. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**19. Use.** The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**20. Maintenance and Repairs.** Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. Time is of the essence with respect to each and every provision of this instrument.

**21. Alterations.** Tenant shall not make any alterations costing more than $419,000 without Landlord's prior written consent, which shall not be unreasonably withheld. Time is of the essence with respect to each and every provision of this instrument. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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## Capital Project Schedule

| Project | Category | Start | Completion | Budget | Spent to Date | Status |
|---|---|---|---|---|---|---|
| Lobby renovation | Energy | 08/13/23 | Q4 2025 | $245,000 | $147,650 | Complete |
| LED lighting retrofit | Energy | 06/19/23 | Q4 2026 | $667,000 | $565,391 | Approved |
| ADA compliance | Life Safety | 11/30/24 | Q4 2027 | $175,000 | $106,583 | Complete |
| Parking lot resurfacing | Building | 02/08/24 | Q3 2025 | $662,000 | $353,627 | Bidding |
| Security camera upgrade | Site | 07/07/26 | Q3 2025 | $84,000 | $59,648 | Approved |
| Storefront glazing | Site | 11/10/23 | Q2 2027 | $204,000 | $29,796 | Bidding |
| Unit interior upgrades | Interior | 02/23/25 | Q4 2027 | $420,000 | $419,245 | Deferred |
| Amenity renovation | Interior | 05/15/24 | Q2 2026 | $98,000 | $9,243 | Approved |
| Parking lot resurfacing | Life Safety | 10/21/24 | Q4 2026 | $255,000 | $177,113 | In progress |
| Parking lot resurfacing | Site | 01/04/26 | Q3 2026 | $823,000 | $464,934 | Deferred |
| Amenity renovation | Building | 05/28/25 | Q3 2026 | $825,000 | $53,046 | In progress |
| Unit interior upgrades | Energy | 11/23/24 | Q3 2026 | $553,000 | $217,556 | Deferred |
| Security camera upgrade | Energy | 04/30/26 | Q2 2026 | $697,000 | $325,659 | Complete |
| ADA compliance | Interior | 01/07/25 | Q4 2025 | $484,000 | $158,100 | In progress |
| Parking lot resurfacing | Interior | 07/23/26 | Q2 2026 | $153,000 | $74,998 | Bidding |
| Fence replacement | Interior | 07/01/26 | Q4 2026 | $691,000 | $214,058 | In progress |
| HVAC replacement | Life Safety | 03/09/25 | Q2 2027 | $190,000 | $148,871 | Deferred |
| Elevator modernization | Building | 02/23/25 | Q3 2025 | $116,000 | $102,169 | Bidding |
| Elevator modernization | Life Safety | 07/21/25 | Q1 2026 | $298,000 | $230,116 | In progress |
| Security camera upgrade | Life Safety | 03/21/23 | Q1 2026 | $134,000 | $29,058 | Deferred |
| HVAC replacement | Building | 04/13/24 | Q1 2025 | $643,000 | $352,515 | Approved |
| Sewer line repair | Building | 02/04/25 | Q2 2025 | $674,000 | $84,460 | Bidding |
| Door hardware | Interior | 05/26/24 | Q3 2026 | $720,000 | $560,850 | Complete |
| HVAC replacement | Site | 12/01/23 | Q2 2027 | $509,000 | $280,554 | Complete |
| Roof replacement - Bldg D | Interior | 01/06/26 | Q4 2026 | $807,000 | $712,548 | In progress |
| Exterior paint | Life Safety | 01/14/26 | Q4 2025 | $638,000 | $175,549 | Approved |
| Unit interior upgrades | Interior | 12/25/23 | Q4 2026 | $245,000 | $91,289 | Deferred |
| HVAC replacement | Energy | 12/01/24 | Q3 2026 | $66,000 | $25,390 | Bidding |
| Storefront glazing | Building | 12/30/23 | Q1 2025 | $14,000 | $7,948 | Complete |
| Door hardware | Energy | 09/20/25 | Q3 2025 | $685,000 | $182,226 | Complete |
| Exterior paint | Building | 05/25/24 | Q1 2026 | $747,000 | $673,969 | Approved |
| Lobby renovation | Interior | 01/27/24 | Q1 2025 | $157,000 | $125,519 | Approved |
| HVAC replacement | Life Safety | 07/18/26 | Q1 2025 | $775,000 | $309,431 | Approved |
| Sewer line repair | Interior | 09/28/23 | Q2 2025 | $61,000 | $19,647 | Bidding |
| Roof replacement - Bldg D | Energy | 06/24/26 | Q3 2025 | $713,000 | $121,008 | Complete |
| Fire alarm panel upgrade | Site | 06/20/23 | Q2 2026 | $485,000 | $190,983 | Bidding |
| Water heater replacement | Building | 02/02/24 | Q4 2025 | $544,000 | $322,189 | In progress |
| Amenity renovation | Building | 03/21/25 | Q2 2027 | $182,000 | $156,858 | Deferred |
| Signage / monument | Site | 04/27/25 | Q2 2026 | $405,000 | $129,493 | Bidding |
| Exterior paint | Energy | 08/17/26 | Q1 2026 | $691,000 | $594,752 | Bidding |

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**22. Insurance and Indemnity.** Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

**23. Assignment and Subletting.** Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**24. Default and Remedies.** If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**25. Renewal Option.** Tenant shall have 32 option(s) to renew for 6 years each at the then-prevailing market rent upon at least nine months' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**26. Subordination and Estoppel.** This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO.

**27. Premises.** Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Cypress Technology Campus, 3953 Maple Court, Kansas City, MO 95850. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**28. Term.** The term of this Lease shall be 6 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

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## Capital Project Schedule

| Project | Category | Start | Completion | Budget | Spent to Date | Status |
|---|---|---|---|---|---|---|
| HVAC replacement | Site | 06/11/24 | Q1 2025 | $750,000 | $316,633 | Bidding |
| Unit interior upgrades | Building | 10/27/25 | Q2 2025 | $126,000 | $121,910 | In progress |
| Door hardware | Site | 06/28/24 | Q2 2026 | $293,000 | $232,727 | In progress |
| Parking lot resurfacing | Life Safety | 03/18/26 | Q3 2027 | $557,000 | $209,667 | Bidding |
| Amenity renovation | Energy | 08/09/26 | Q1 2025 | $169,000 | $83,910 | Deferred |
| Exterior paint | Interior | 05/10/23 | Q4 2027 | $525,000 | $262,544 | Approved |
| Amenity renovation | Life Safety | 10/15/26 | Q4 2027 | $409,000 | $14,414 | Complete |
| Sewer line repair | Building | 06/26/24 | Q3 2026 | $347,000 | $92,454 | Complete |
| Signage / monument | Site | 09/13/25 | Q3 2025 | $363,000 | $13,906 | Bidding |
| Amenity renovation | Life Safety | 04/16/23 | Q2 2025 | $599,000 | $115,084 | In progress |
| Unit interior upgrades | Site | 11/05/26 | Q2 2025 | $34,000 | $13,726 | In progress |
| LED lighting retrofit | Building | 09/12/26 | Q4 2027 | $710,000 | $482,143 | Deferred |
| Lobby renovation | Energy | 04/15/26 | Q2 2025 | $470,000 | $366,304 | In progress |
| Fence replacement | Life Safety | 08/19/23 | Q4 2025 | $356,000 | $95,718 | In progress |
| Lobby renovation | Site | 04/10/26 | Q1 2026 | $636,000 | $214,123 | Bidding |
| Door hardware | Site | 02/22/24 | Q4 2025 | $484,000 | $434,367 | Complete |
| Door hardware | Life Safety | 12/18/24 | Q4 2026 | $855,000 | $427,815 | In progress |
| Landscape / irrigation | Interior | 06/18/25 | Q1 2026 | $240,000 | $176,580 | Complete |
| Water heater replacement | Energy | 03/16/25 | Q3 2025 | $9,000 | $1,033 | Complete |
| Fence replacement | Life Safety | 09/21/25 | Q1 2026 | $221,000 | $120,584 | Bidding |
| Unit interior upgrades | Energy | 09/06/23 | Q2 2027 | $20,000 | $12,436 | In progress |
| Door hardware | Site | 11/02/24 | Q2 2027 | $378,000 | $188,967 | Bidding |
| Door hardware | Life Safety | 09/18/23 | Q2 2026 | $167,000 | $157,901 | Approved |
| Pool resurfacing | Site | 09/19/25 | Q4 2025 | $483,000 | $372,332 | Deferred |
| Exterior paint | Energy | 09/03/24 | Q3 2025 | $731,000 | $516,594 | Deferred |
| Lobby renovation | Interior | 04/26/25 | Q4 2026 | $254,000 | $194,541 | In progress |
| Exterior paint | Energy | 09/21/26 | Q3 2026 | $792,000 | $21,744 | Bidding |
| Landscape / irrigation | Interior | 10/11/24 | Q1 2027 | $475,000 | $298,379 | In progress |
| Fire alarm panel upgrade | Building | 01/08/26 | Q2 2025 | $634,000 | $653,899 | Deferred |
| ADA compliance | Building | 11/29/24 | Q4 2027 | $36,000 | $23,144 | Approved |
| Pool resurfacing | Interior | 04/14/23 | Q4 2027 | $512,000 | $307,875 | Approved |
| Landscape / irrigation | Interior | 12/04/23 | Q4 2026 | $641,000 | $39,636 | Complete |
| HVAC replacement | Life Safety | 07/31/26 | Q2 2025 | $591,000 | $364,687 | In progress |
| Landscape / irrigation | Energy | 01/03/23 | Q4 2027 | $729,000 | $91,365 | Approved |
| Door hardware | Energy | 01/11/26 | Q4 2025 | $134,000 | $42,386 | Bidding |
| Storefront glazing | Energy | 09/15/24 | Q1 2025 | $39,000 | $643 | Approved |
| Unit interior upgrades | Energy | 10/28/26 | Q4 2025 | $469,000 | $101,358 | Approved |
| Door hardware | Energy | 04/24/25 | Q4 2027 | $555,000 | $272,017 | Approved |
| Sewer line repair | Interior | 02/12/26 | Q3 2025 | $615,000 | $191,184 | In progress |
| Lobby renovation | Building | 10/28/23 | Q3 2025 | $55,000 | $15,417 | Approved |
| Parking lot resurfacing | Energy | 03/17/25 | Q2 2026 | $109,000 | $37,254 | Approved |
| Security camera upgrade | Building | 04/08/25 | Q2 2026 | $140,000 | $78,846 | In progress |
| LED lighting retrofit | Life Safety | 11/10/23 | Q3 2027 | $670,000 | $439,758 | Deferred |

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**29. Base Rent.** Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**30. Additional Rent and Operating Expenses.** Tenant shall pay its Proportionate Share of Operating Expenses, Real Estate Taxes and Insurance Costs, estimated monthly and reconciled annually. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**31. Security Deposit.** Upon execution, Tenant shall deposit with Landlord a security deposit equal to 7 months of Base Rent, to be held without interest. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

**32. Use.** The Premises shall be used solely for the Permitted Use and for no other purpose without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**33. Maintenance and Repairs.** Landlord shall maintain the roof, structure and common areas. Tenant shall maintain the interior of the Premises, including HVAC equipment exclusively serving the Premises. Time is of the essence with respect to each and every provision of this instrument. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**34. Alterations.** Tenant shall not make any alterations costing more than $387,000 without Landlord's prior written consent, which shall not be unreasonably withheld. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. Time is of the essence with respect to each and every provision of this instrument.

**35. Insurance and Indemnity.** Tenant shall maintain commercial general liability insurance of not less than $2,000,000 per occurrence naming Landlord and Landlord's lender as additional insureds. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

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## Capital Project Schedule

| Project | Category | Start | Completion | Budget | Spent to Date | Status |
|---|---|---|---|---|---|---|
| LED lighting retrofit | Energy | 09/11/26 | Q3 2025 | $572,000 | $286,055 | Approved |
| Fire alarm panel upgrade | Life Safety | 07/15/24 | Q3 2027 | $734,000 | $523,839 | Complete |
| Parking lot resurfacing | Life Safety | 07/22/24 | Q3 2025 | $82,000 | $75,138 | In progress |
| HVAC replacement | Life Safety | 08/22/26 | Q3 2025 | $442,000 | $459,772 | Approved |
| LED lighting retrofit | Site | 01/08/26 | Q2 2027 | $638,000 | $281,997 | In progress |
| Signage / monument | Life Safety | 08/31/23 | Q4 2025 | $10,000 | $6,312 | Approved |
| Water heater replacement | Building | 11/21/23 | Q4 2027 | $40,000 | $26,392 | Complete |
| Landscape / irrigation | Building | 02/09/25 | Q4 2027 | $442,000 | $205,073 | Deferred |
| HVAC replacement | Building | 09/09/25 | Q3 2027 | $312,000 | $219,075 | Approved |
| Water heater replacement | Building | 06/08/24 | Q2 2027 | $153,000 | $97,588 | Bidding |
| Parking lot resurfacing | Site | 02/14/23 | Q1 2027 | $838,000 | $505,934 | In progress |
| Signage / monument | Building | 04/11/25 | Q1 2027 | $39,000 | $28,574 | In progress |
| Pool resurfacing | Site | 08/24/24 | Q3 2025 | $303,000 | $213,142 | Complete |
| Elevator modernization | Life Safety | 05/10/25 | Q4 2026 | $580,000 | $444,186 | In progress |
| HVAC replacement | Energy | 01/19/24 | Q1 2027 | $457,000 | $404,755 | Bidding |
| LED lighting retrofit | Life Safety | 04/13/24 | Q1 2026 | $81,000 | $60,726 | Approved |
| Unit interior upgrades | Interior | 06/27/25 | Q4 2027 | $394,000 | $261,277 | In progress |
| Amenity renovation | Energy | 02/04/23 | Q2 2027 | $860,000 | $139,175 | In progress |
| Signage / monument | Energy | 12/30/23 | Q2 2026 | $894,000 | $214,756 | Bidding |
| Parking lot resurfacing | Interior | 02/25/24 | Q3 2026 | $587,000 | $355,552 | Complete |
| HVAC replacement | Energy | 02/24/26 | Q1 2025 | $257,000 | $53,192 | Approved |
| Security camera upgrade | Energy | 09/23/25 | Q2 2025 | $33,000 | $25,422 | In progress |
| Unit interior upgrades | Life Safety | 01/26/25 | Q2 2025 | $185,000 | $174,565 | Approved |
| Amenity renovation | Building | 07/11/23 | Q1 2025 | $114,000 | $36,275 | Bidding |
| Unit interior upgrades | Site | 09/19/25 | Q3 2025 | $652,000 | $238,560 | Approved |
| Roof replacement - Bldg B | Energy | 07/29/23 | Q1 2025 | $396,000 | $398,595 | In progress |
| Landscape / irrigation | Energy | 10/16/26 | Q4 2026 | $406,000 | $227,790 | Deferred |
| Parking lot resurfacing | Interior | 03/06/24 | Q3 2026 | $467,000 | $246,116 | In progress |
| Lobby renovation | Building | 02/11/26 | Q2 2026 | $813,000 | $501,339 | Bidding |
| Fence replacement | Energy | 10/10/26 | Q4 2027 | $368,000 | $319,825 | In progress |
| Lobby renovation | Building | 02/23/26 | Q1 2025 | $210,000 | $147,561 | Complete |
| Fire alarm panel upgrade | Site | 09/22/25 | Q4 2025 | $683,000 | $84,079 | In progress |
| Roof replacement - Bldg D | Interior | 04/26/25 | Q1 2027 | $165,000 | $23,883 | Complete |
| Exterior paint | Site | 02/12/24 | Q3 2025 | $9,000 | $944 | In progress |
| Lobby renovation | Site | 02/17/26 | Q2 2025 | $757,000 | $363,144 | Bidding |
| Roof replacement - Bldg A | Building | 08/09/23 | Q2 2027 | $536,000 | $137,484 | Bidding |
| Fence replacement | Site | 10/02/24 | Q1 2027 | $405,000 | $160,805 | Bidding |
| Fire alarm panel upgrade | Interior | 01/17/26 | Q2 2027 | $33,000 | $33,083 | Approved |
| Fence replacement | Energy | 04/30/23 | Q4 2027 | $592,000 | $440,513 | Approved |
| Fence replacement | Energy | 02/27/23 | Q1 2027 | $252,000 | $14,538 | Approved |

Report generated 08/05/2024. Figures are unaudited and subject to change.

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**36. Assignment and Subletting.** Tenant shall not assign this Lease or sublet all or any part of the Premises without Landlord's prior written consent. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect.

**37. Default and Remedies.** If Tenant fails to pay rent within five days of written notice, or fails to cure any other default within thirty days, Landlord may terminate this Lease and pursue all remedies at law. Time is of the essence with respect to each and every provision of this instrument. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO.

**38. Renewal Option.** Tenant shall have 32 option(s) to renew for 12 years each at the then-prevailing market rent upon at least nine months' notice. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

**39. Subordination and Estoppel.** This Lease is subordinate to any mortgage now or hereafter encumbering the Property, and Tenant shall deliver an estoppel certificate within ten days of request. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

**40. Premises.** Landlord leases to Tenant, and Tenant leases from Landlord, the Premises described in the Basic Lease Information located at Cypress Technology Campus, 3953 Maple Court, Kansas City, MO 95850. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

**41. Term.** The term of this Lease shall be 9 years commencing on the Commencement Date, unless sooner terminated or extended pursuant to the terms hereof. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

**42. Base Rent.** Tenant shall pay monthly Base Rent in the amounts set forth in the Rent Schedule, in advance, on the first day of each calendar month, without demand, deduction or offset. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of MO.

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# Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Cypress Technology Campus Owner LLC

By: Sofia Harper Title: Managing Member Date: 08/05/2024

_____

Bluebird Hosting

By: David Ito Title: Managing Member Date: 08/05/2024

## Exhibit A - Property

Cypress Technology Campus, 3953 Maple Court, Kansas City, MO 95850. Parcel containing approximately 30.26 acres, together with all improvements thereon.

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